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Case Name: *Taneesh Reddy v. George Michael Sasko IV, et al.*

Case No.: 24CV453480

Before the Court is Defendants Mountain View Whisman School District (the “District”) and Dalton Ernesto Mendoza Oliva’s (“Oliva”) (collectively, “Defendants”) demurrer to the complaint (“Complaint”) filed by Plaintiff Taneesh Reddy (“Plaintiff”). Pursuant to California Rule of Court 3.1308, the Court issues its tentative ruling as follows:

I. Background

This is an action for negligence. According to the allegations of the operative Complaint (“Complaint”), on December 19, 2023, Plaintiff was a passenger in a 2003 Infiniti G35 (the “Infiniti”) driven by Defendant George Michael Sasko IV and owned/leased by Defendants George Michael Sasko IV, George Michael Sasko III and Khatoun Nourallahi. (Complaint, ¶¶ 3-4.) The Infiniti was heading northbound on Miramonte Avenue in Mountain View when it struck a 2001 Ford E-150 (the “Ford”) being driven by Oliva, who was allegedly acting in the course and scope of their employment with the District at that time. (*Id.*, ¶ 5.) Oliva’s vehicle is alleged to have been owned by the District. (*Id.*) Plaintiff alleges that Mr. Sasko IV, the District and Oliva “negligently and carelessly drove, operated, maintained, owned, entrusted, serviced and controlled their respective vehicles” so as to cause the Infiniti to strike the Ford, causing Plaintiff to sustain injuries. (*Id.*, ¶ 6.)

Based on the foregoing, Plaintiff initiated this action on December 6, 2024 with the filing of the Complaint, asserting the following causes of action: (1) negligence (against all defendants); and (2) negligent entrustment of vehicle (against George Michael Sasko III and Khatoun Nourallahi).

On March 14, 2025, Defendant filed the instant demurrer to the Complaint on the ground of failure to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) Plaintiff filed his opposition on May 23, 2025. May 30, 2025, Defendants filed their reply.

II. Defendants’ Demurrer

A. Legal Standard

“The party against whom complaint or cross-complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure s]ection 430.30, to the pleading on any one or more of the following grounds: ... (a) the court has no jurisdiction of the subject of the cause of action alleged in the pleading, (e) The pleading does not state facts sufficient to constitute cause of action, (f) The pleading is uncertain.” (Code Civ. Proc., § 430.10, subds. (a), (e) (f).) demurrer may be utilized by “[t]he party against whom complaint has been filed” to object to the legal sufficiency of the pleading as a whole, or to any “cause of action” stated therein, on one or more of the grounds enumerated by statute. (Code Civ. Proc., §§ 430.10, 430.50, subd. (a).)

The court treats demurrer “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency*

Management Agency (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “A demurrer tests only the legal sufficiency of the pleading. It admits the truth of all material factual allegations in the complaint; the question of plaintiffs ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 213-214.) In ruling on a demurrer, courts may consider matters subject to judicial notice. (*Scott v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 743, 751.) Evidentiary facts found in exhibits attached to complaint can be considered on demurrer. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 14 91, 94.)

B. Discussion

In demurring to the Complaint, Defendants maintain that no claim for negligence has been stated against them because (1) the Complaint lacks a statutory basis for the waiver of the District’s sovereign immunity and (2) the Complaint lacks a factual basis for a negligence claim against the District. Both of these arguments are well taken.

First, the limits of common law liability for public entities are set by the Government Claims Act (Gov. Code, § 810 et seq.), which provides, in pertinent part, that:

Except as otherwise provided by statute: [¶] (a) A public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.

It is well-settled that the foregoing abolishes common law tort liability for public entities. (See *Miklosy v. Regents of University of California* (2008) 44 Cal.4th 876, 899 (*Miklosy*)). Thus, all government tort liability is dependent on the existence of an authorizing statute or “enactment,” and “to state a cause of action [in such a circumstances] every fact essential to the existence of statutory liability must be pleaded with particularity, including the existence of a statutory duty.” (*Searcy v. Hemet Unified School Dist.* (1986) 177 Cal.App.3d 792, 802, internal citations omitted.) “Duty cannot be alleged simply by stating ‘defendant had a duty under the law’; that is a conclusion of law, not an allegation of fact. The facts showing the existence of the claimed duty must be alleged.” (*Id.*, internal citations omitted.) Because the duty of a public entity can only be created by statute or “enactment,” the statute or “enactment” claimed to establish the duty “must at the very least be identified.” (*Id.*)

Here, no statutory basis for liability is stated against Defendants in the Complaint and, as set forth above, a common law claim of negligence cannot be pleaded against a public entity. (See *Miklosy, supra*, 44 Cal.4th at 899.) Consequently, no claim for negligence, nor any other claim, has been stated against Defendants.

Turning to Defendants’ second argument, as Defendants explain, a complaint must set forth the essential facts with sufficient particularity to acquaint a defendant with the nature, source and extent of the plaintiff’s cause of action. (*Thomas v. Regents of University of California* (2023) 97 Cal.App.5th 587, 610-611.) Pleading mere legal conclusions is insufficient to meet the pleading requirement that a complaint contain a statement of facts constituting the cause of action in ordinary and concise language. (See *Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6.) In the Complaint, Plaintiff pleads a legal conclusion when he alleges that Oliva acted negligently while operating the Ford. There are otherwise no *facts*

setting forth *how* Defendants breached the duty of care they owed to Plaintiff. For this additional reason, the Court finds that Plaintiff has failed to state a claim for negligence against Defendants.

In accordance with the foregoing, Defendants' demurrer to the Complaint on the ground of failure to state facts sufficient to constitute a cause of action is SUSTAINED WITH 10 DAYS' LEAVE TO AMEND.

The Court will prepare the final order.

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Calendar Line 4

Case Name: *Richard Vergason v. Global Loss Prevention, Inc. et al*
Case No.: 24CV452679

Defendants move to compel Plaintiff to arbitrate “individual claims” in his Complaint pursuant to an Arbitration Agreement (“the Agreement”) that provides that “any and all claims arising out of or related to” Plaintiff’s employment will be subject to arbitration, and that any dispute will be brought “on an individual basis only and not as part of a representative action pursuant to [PAGA].” Despite the language of the Agreement, Plaintiff has brought what he calls “a purely representative PAGA action” and argues that the claims in this “Representative Action” cannot be compelled to arbitration.

It is necessary to begin with what the instant motion is not. Despite both parties’ discussion of the topic, this is not a motion to determine Plaintiff’s standing as an “aggrieved employee” to bring representative PAGA claims. Nor is it a challenge to Plaintiff’s Complaint on the basis that a *solely* representative PAGA action is unauthorized by the PAGA statute. Lastly, this is not a proceeding to determine whether Plaintiff’s filing of a representative PAGA claim violates the terms of the Agreement due to a valid PAGA waiver. Instead, Defendants bring a motion to compel “arbitration of [Plaintiff’s] individual PAGA claim.”

Two cases have reached competing views as to whether any “individual PAGA claim” in a complaint purporting to raise solely representative PAGA claims may be compelled to arbitration: *Leeper v. Shipt, Inc.* (2024) 107 Cal.App.5th 1001 review granted April 16, 2025 (S289305), and *Rodriguez v. Packers Sanitation Services LTD., LLC* (2025) 109 Cal.App.5th 69 review granted May 14, 2025 (S290182). This Court finds *Rodriguez* to be more persuasive and chooses to embrace the reasoning in that case.

As stated in *Rodriguez*:

“A motion to compel arbitration “is simply a suit in equity seeking specific performance of a contract.” (*Aanderud v. Superior Court* (2017) 13 Cal.App.5th 880, 890.) On a motion to compel arbitration, the court is required to determine whether the plaintiff has asserted claims that fall within the parties’ arbitration agreement. (*Aanderud*, at p. 890; *EFund Capital Partners v. Pless* (2007) 150 Cal.App.4th 1311, 1321; *Buckhorn v. St. Jude Heritage Medical Group* (2004) 121 Cal.App.4th 1401, 1406.) And “no dispute may be ordered to arbitration unless it is within the scope of the arbitration agreement.” (*Titolo v. Cano* (2007) 157 Cal.App.4th 310, 317.) If the plaintiff’s complaint asserts no individual PAGA claim, there is no existing dispute over his or her right to obtain an individual PAGA remedy, and he or she cannot properly be ordered to arbitrate such a claim. Therefore, if on a motion to compel arbitration the court examines the complaint and determines it does not allege an individual PAGA claim, the court should decline to compel any such claim to arbitration.”

(*Rodriguez, supra*, 109 Cal.App.5th at p. 80.) Here, Plaintiff’s Complaint asserts no individual claims and, in fact, explicitly disavows any suggestion of such. Therefore, there is no individual PAGA claim in the current Complaint for this Court to compel to arbitration.